

MyHOAAppeal - Educational worksheet

Requesting HOA Records and Violation Files

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about inspection rights, written requests, and follow-up. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of inspection rights, written requests, and follow-up.
- * Make the decision point explicit: Your appeal should answer what records to demand first with exhibits, not adjectives.
- * Compare options deliberately: Know whether you are closer to Governing docs, Violation file, or Financial ledger before you escalate.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to inspection rights, written requests, and follow-up.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about inspection rights, written requests, and follow-up. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on inspection rights, written requests, and follow-up.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to what records to demand first.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around inspection rights, written requests, and follow-up.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to what records to demand first, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to inspection rights, written requests, and follow-up
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address what records to demand first
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether governing docs or violation file better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing inspection rights, written requests, and follow-up arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control what records to demand first.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on inspection rights, written requests, and follow-up; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around inspection rights, written requests, and follow-up.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on inspection rights, written requests, and follow-up. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering inspection rights, written requests, and follow-up?

- Yes - I have notices or governing excerpts -> go to quality
- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run this tree for inspection rights, written requests, and follow-up. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about inspection rights, written requests, and follow-up.

Q (quality): Does your packet clearly address what records to demand first?

- Yes - defects and facts are indexed -> go to deadline
- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue inspection rights, written requests, and follow-up. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on inspection rights, written requests, and follow-up, and request a hearing or written decision in the same letter.
- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve inspection rights, written requests, and follow-up arguments even while clarifying timing.
- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Governing docs | Violation file | Financial ledger

Typical signal

[Governing docs] Clear written basis for governing docs

[Violation file] Partial or contested basis for violation file

[Financial ledger] High risk if you only have financial ledger

Owner priority

[Governing docs] Preserve governing docs with indexed proof
[Violation file] Convert violation file into a documented record
[Financial ledger] Do not rely on financial ledger alone
Board / manager reaction
[Governing docs] Harder to dismiss when exhibits are complete
[Violation file] May stall or ask for more information
[Financial ledger] Often treated as insufficient without follow-up writing
Next educational move
[Governing docs] Advance the formal path for inspection rights, written requests, and follow-up
[Violation file] Send a clarifying letter addressing what records to demand first
[Financial ledger] Collect missing documents before arguing substance
Escalation risk if ignored
[Governing docs] Lower if you stay on deadline
[Violation file] Medium - ambiguity can harden into denial
[Financial ledger] Higher - financial ledger gaps feed collections narratives

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